

JUSTIFICATION REVIEW DOCUMENT

NATIONAL GUARD BUREAU
111 South George Mason Drive
Arlington, VA 22204-1373



1. OVERVIEW

a. Program/Equipment Name

WVARNG Wireless Services & Devices

b. Estimated Price

\$1,975,802.22

c. Authority

10 U.S.C. 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

d. Technical Representative

[Redacted]

Date

March 11, 2026

e. Contracting Officer

Name	Title	Email	Phone	Date
[Redacted]				March 11, 2026

Date

March 11, 2026

☐ Requirements Representative *(If different from Technical Representative.)*

☒ Prepared by *(If different from Contracting Officer.)*

Name	Title	Email	Phone	Date
[Redacted]				March 11, 2026

Date

March 11, 2026

2. REVIEWS

I have reviewed this justification and find it adequate to support other than full and open competition.

☐ Program Manager *(If applicable.)*

☐ Program Executive Officer *(When item is Program Executive Officer managed.)*

Controlled by: National Guard Bureau

Controlled by: NGWV-PFO-PC

CUI Category: SOURCE SELECTION

Limited Dissemination Control: FEDCON

POC: Erica D. Oldaker

304-473-5265

(Populates from the i.e. Contracting Officer.)

Justification for an Exception to Fair Opportunity

Guidance

Local Control Number

NGB Control Number (if applicable)

1a. CONTRACTING ACTIVITY

USPFO PWV-PC

b. Requiring Activity

WVARNG Wireless Services & Devices

c. POC

2a. NATURE OF ACTION

Sole source; Individual Basis

b. Contract Action

New Contract

c. Contract Type

Firm Fixed Price

d. Fund Type

O&M, Army

3a. ESTIMATED PRICE

\$1,975,802.22

4a. Name of Requirement

WVARNG Wireless Services & Devices

b. Description of Requirement

The proposed acquisition is to acquire commercial wireless voice and data capabilities with FirstNet Services, related equipment and support services for the WV ARNG. It is also intended to provide access to the Nationwide Public Safety Broadband Network. The period of performance will not exceed sixty (60) months and will consist of a base period of twelve (12) months and four (4) twelve (12) month option periods.

This is a limited source action to be awarded as a new task order and/or modification of an existing contract to the Wireless Services Spiral 4, Indefinite Delivery, Indefinite Quantity, Multiple Award Contracts for Wireless Cellular Services. Provide Priority Service to all wireless devices.

c. Demonstrate, in Detail, Why This Specific Item or Service, is the Only One That Meets Your Requirements

The Government requires a secure and reliable communication solution for first responders that safeguards Controlled Unclassified Information (CUI), particularly in low-bandwidth environments. The chosen solution is the FirstNet network, provided by AT&T. This network is uniquely capable of prioritizing communication for first responders during emergencies. FirstNet is the only national telecommunications network dedicated to public safety. Its critical feature is the ability to guarantee preemption and prioritization for first responders. This ensures that during federal and state-level disaster responses, their communication lines remain open and reliable, even when commercial networks are congested.

The Department of Defense (DoD) is required to use the Naval Supply (NAVSUP) Spiral 4 wireless contract. AT&T Mobility National Accounts, LLC (CAGE: 3CLK6) is the sole provider on this contract that offers access to the FirstNet network. The Nationwide Public Safety Broadband Network (NPSBN) contract was awarded to AT&T through full and open competition. An Exception to Fair Opportunity, justified by the FIRSTNET ALLNAV Message R121659Z FEB 19, allows for direct placement of orders with AT&T for these services. In 2017, the FirstNet Authority, under the U.S. Department of Commerce, awarded AT&T a 25-year contract to deploy and maintain the network. This was established under the authority of the Middle Class Tax Relief and Job Creation Act of 2012.

5a. HAS THIS BEEN PREVIOUSLY PROCURED?

☒ Yes, details are below. ☐ No.

b. Contract Number

N0024424D0005/W912L825FA008

c. Date

March 28, 2025

d. Competitive Status

Other than Full and Open

e. Authority Previously Cited (if OTF&O)

FAR 16.505(b)(2)(i)(B)

f. Summary of "Actions to Increase Competition" and an explanation of the results.

The Department of Defense (DoD) has mandated a single contract vehicle, known as Spiral 4, for all its components to procure UNCLASSIFIED wireless mobile services and devices within the 50 United States and its territories. This directive is managed by the Department of the Navy's Wireless Mobility Program Office.

Due to the mandate requiring the use of this specific contract, an Intent to Sole Source was posted for 15 days on SAM.gov. No other actions to increase competition were taken, as procurement is restricted to this vehicle.

g. If previously used "Full and Open Competition" explain what changes causing this to now have limited sources.

Not Applicable

h. Provide an explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys.

Not Applicable

i. If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes.

The Department of Defense (DoD) has mandated a single contract vehicle, known as Spiral 4, for all its components to procure UNCLASSIFIED wireless mobile services and devices within the 50 United States and its territories. This directive is managed by the Department of the Navy's Wireless Mobility Program Office. The Spiral 4 contract vehicle replaces the previous Spiral 3 contract. It is designed to consolidate agency requirements, leverage the government's collective buying power, and achieve significant cost savings.

j. Provide any other facts necessary to justify limiting competition that were not previously stated.

FirstNet is the only national telecommunications network dedicated to public safety. Its critical feature is the ability to guarantee preemption and prioritization for first responders. This ensures that during federal and state-level disaster responses, their communication lines remain open and reliable, even when commercial networks are congested.

6a. AUTHORITY CITED

10 U.S.C. 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

b. Reason for Authority Cited

On 23 May 2024, the Department of Defense (DoD) issued a DoD Chief Information Office (CIO) memorandum requiring all DoD components to "procure UNCLASSIFIED wireless mobile services and devices for use with the 50 United States and U.S. territories through a single departmentwide contract vehicle - call Spiral 4." Spiral 4 is managed by the Department of Navy's Wireless Mobility Program Office and became effective 8 May 2024. A review of awards revealed AT&T Mobility National Accounts, LLC (Cage 3CLK6) is the only contractor within the suite of contracts awarded which provides access to the First Responders Network Authority (FirstNet).

The FirstNet network was created and developed under the authority provided in Middle Class Tax Relief and Job Creation Act of 2012 and provides for a national telecommunications network. FirstNet is dedicated to public safety communications, ensuring reliable and prioritized access for first responders, especially during emergencies. The WVARNG has a critical role at every echelon which REQUIRES access to FirstNet.

Furthermore, the WVARNG mission falls directly within the National Guard Bureau Strategic Plan, as they continue to seek better interoperability with local, state and federal agencies to improve Domestic Operations(DOMOPS) mission response and Defense Security Cooperation Agency(DSCA) missions using FirstNet Deployable assets that integrate Commercial Satellite Communication networks in to mobile device communications that enhance operational and executive communications, while further evolving NG wireless capabilities (5G) and mobile device infrastructure that must be encrypted end to end.

7. POSTING REQUIREMENTS

Shall post a notice and the justification within 14 days after placing an order at the SAM.gov (GPE) for a minimum of 30 days (FAR 16.505(b)(2)(ii)(D)).

8. CONTRACTING REQUIREMENTS

a. Efforts to Obtain Competition

Due to the mandate requiring the use of this specific contract, an Intent to Sole Source was posted for 15 days. No other actions to increase competition were taken, as procurement is restricted to this vehicle.

b. Actions to Increase Competition

A Intent to Sole Source was posted for 15 days to overcome the competition barrier.

c. Market Research

Market research was conducted by surveying the following Internet sources; Google, GSA, UNICOR, AbilityOne, SAM.gov, and the SBA Website. Market research provided that neither UNICOR nor AbilityOne can provide this type of service. Historical acquisitions were reviewed for similar services provided to the government. Additional research was conducted within in the Spiral 4 wireless service multiple award contract (MAC) for FirstNet Services. This research established that AT&T is the authorized provider for FirstNet Services, which is mandatory for the Department of Defense. A Notice of Intent to Award a Sole Source Contract was published on SAM.gov for a duration of 15 days, providing all interested parties with an opportunity to review and submit their capabilities.

d. Interested Sources

To date, no other sources have written to express an interest in this requirement.

e. Other Facts

Not Applicable

9. REQUIRING ACTIVITY CERTIFICATION

Technical and Requirements

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Name

Date

Title

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10. REVIEW

Contracting Officer (KO)

1. I hereby determine that the anticipated cost to the government for this contract action will be Fair and Reasonable.
2. I certify that this Justification is accurate and complete to the best of my knowledge and belief.

(This certification shall be made by the contracting Officer who will sign the contract resulting from this Justification and Approval.)

Name

Date

Phone

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Legal (Local)

I have reviewed this justification and find it adequate to support other than full and open competition. See comments below. *(Field will expand as needed.)*

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Chief of the Contracting Office (CoCO) ☐ Acting as.

I have reviewed this justification and find it adequate to support other than full and open competition. See comments below. *(Field will expand as needed.)*

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Chief, Acquisition Compliance and Oversight Division (AQ-P Chief) ☐ Acting as.

I have reviewed this justification and find it adequate to support other than full and open competition. See comments below. *(Field will expand as needed.)*

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11. APPROVAL**Command Advocate for Competition (CAFC)** ☐ Acting as.

I have reviewed this justification and find it adequate to support other than full and open competition. See comments below. *(Field will expand as needed.)*

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12. REDACTION INSTRUCTIONS

After completion and signatures, print to PDF. Then redact items such as, but not limited to:

1. Dollar amounts.
2. Names.
3. Signatures.
4. Proprietary information.

FAR 5.401, FAR 24.1, and FAR 24.2